

BUSINESS AND PROFESSIONS CODE - BPC

DIVISION 9. ALCOHOLIC BEVERAGES [23000 - 25762] (*Division 9 added by Stats. 1953, Ch. 152.*)

CHAPTER 3. Licenses and Fees [23300 - 23552] (*Chapter 3 added by Stats. 1953, Ch. 152.*)

ARTICLE 1. In General [23300 - 23301] (*Article 1 added by Stats. 1953, Ch. 152.*)

23300. No person shall exercise the privilege or perform any act which a licensee may exercise or perform under the authority of a license unless the person is authorized to do so by a license issued pursuant to this division.

(*Added by Stats. 1953, Ch. 152.*)

23300.1. (a) A written agreement regarding the sharing or splitting of gross revenue from the sale of alcoholic beverages between a licensee and a district agricultural association, the California Exposition and State Fair, a county fair, or a citrus fruit fair, in connection with the sale of alcoholic beverages during a state or county fair is not the exercise of a license privilege or performance of an act for which a license is required, unless the agreement, or any other related agreement or understanding, results in an unlicensed person exercising control or undue influence over a licensee or the operation of a licensed business.

(b) Notwithstanding subdivision (a), all other provisions of this division shall apply to the written agreement.

(*Added by Stats. 2016, Ch. 131, Sec. 1. (AB 2135) Effective January 1, 2017.*)

23301. Any person violating Section 23300 is guilty of a misdemeanor, except that any person, without having a still license, exercising the privileges or performing any act which a still licensee may exercise or perform is guilty of a felony.